

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JUNE 10, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Sharmike R. Coleman vs. Select Portfolio Servicing Inc., et al.
Case No. CU26-00897**

Application for Temporary Restraining Order

TENTATIVE RULING:

Parties to Appear.

**WELLS FARGO BANK, N.A.. v. HANA M. GRIFFIN
Case No. CL23-06088**

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENATIVE RULING:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.) Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains

no information regarding Defendant's contact information including telephone, email or address.

On June 3, 2025, this same motion was denied by Department 5, the Honorable David Power, on the basis that Plaintiff failed to file proof of personal service of the motion as directed by the court on April 7, 2025.

Plaintiff has refiled the same exact motion that was previously denied and served the motion by mail again - twice.

No good cause exists for Plaintiff's repeated submissions of a motion that was previously denied for failure to personally serve. An Order to Show Cause to Plaintiff's law firm and its managing attorney will issue as to why each should not be sanctioned up to \$1,000 for this abuse of process.

Notably, the court sent a courtesy notice to Ms. Griffin at the address that was used by Plaintiff in its amended notice of motion that was returned to the court as undeliverable. Presumably Plaintiff's mailings to Ms. Griffin at the same address were also returned to Plaintiff as undeliverable. Counsel for Plaintiff has a duty to inform the court of these types of facts and this is the exact reason why personal service is necessary.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

MELISSA LEITZKE v. CITY OF VALLEJO
Case No. CU23-02170

Defendant's Motion to Seal Exhibits and Motion for Summary Judgment

TENTATIVE RULING

Motion to Seal Exhibits

Defendant CITY OF VALLEJO moves to seal certain documents it submitted in support of Defendant's motion for summary judgment concerning Plaintiff MELISSA LEITZKE's first amended complaint alleging retaliation, failure to prevent discrimination or harassment, and gender discrimination.

The court has not received opposition to the motion.

Motions to Seal. There exists a First Amendment right of access to documents used at trial or as a basis of adjudication. (*NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1208; *Mercury Interactive Corporation v. Klein* (2007) 158 Cal.App.4th 60, 84.) Accordingly, a court record must not be filed under seal without a court order. (Cal. Rules of Court, rule 2.551(a).) The court may order the record sealed only upon express findings that facts establish that there exists an overriding interest that overcomes the right of public access to the record, the overriding interest supports sealing the record, a substantial probability exists that the overriding interest will be prejudiced if

the record is not sealed, the proposed sealing is narrowly tailored, and no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Defendant has established an overriding interest in sealing the identified materials and that the overriding interest will be prejudiced without sealing in that the materials concern private personnel records of Defendant's public employees and investigations into allegations of misconduct potentially leading to formal discipline. (*San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 [disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531]; *Marken v. Santa Monica-Malibu Unified School District* (2012) 202 Cal.App.4th 1250, 1261.) The proposed sealing is narrowly tailored to protect the most sensitive personnel records and related documents submitted in support of Defendant's motion and no less restrictive means exist to protect the underlying privacy interests.

Conclusion. Defendant's unopposed motion to seal is granted.

Motion for Summary Judgment

The court, on its own motion, continues the hearing to June 11, 2026 at 9:30 a.m.

CHADWICK v. TOYOTA MOTOR SALES, U.S.A., INC., ET AL.
Case No. CU25-10667

Demurrer and Motion to Strike

TENTATIVE RULING:

Demurrer

Defendant Toyota Motor Sales, U.S.A., Inc.'s demurrer to the sixth cause of action for fraudulent inducement-concealment is OVERRULED.

The allegations of the cause of action are similar to those found sufficient in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828 and not to the allegations in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1. The significant distinction is fraudulent concealment in the inducement to contract - or pre-contract tort behavior- rather than fraudulent concealment in the performance of a contract. The latter requires an analysis as to whether tort damages independent of contractual damages can be alleged.

Plaintiff's cause of action alleges fraudulent concealment *prior* to the existence of a contractual relationship. Plaintiff has alleged that the transmission was defective (Complaint, ¶ 52), Defendant knew of the defects and the hazards they pose (Complaint, ¶¶ 54, 57), Defendant had exclusive knowledge of the defects but intentionally concealed that information (FAC, ¶¶ 55, 57, 59(c)), Defendant intended to deceive plaintiff by concealing the known transmission defects (Complaint, ¶ 60), Plaintiff would not have purchased the vehicle had he known of the defects (Complaint,

¶ 56), and Plaintiff has been damaged in the form of money paid to purchase the car (Complaint, ¶ 63). Fraudulent inducement claims are an exception to the economic loss rule and independent of a manufacturer's breach of warranty. (*Dhital*, 84 Cal.App.5th at 843.)

Motion to Strike

Defendant's motion to strike Plaintiff's prayer for punitive damages is denied. Not only has Plaintiff adequately pleaded a fraudulent inducement cause of action which can support a claim for punitive damages (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946, 965-966), Plaintiff need not make an election between civil penalties and punitive damages for the Song-Beverly causes of action at the pleading stage (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1256-1257).

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002